TORONTO

How to File a Claim

To make a claim, please use this Claim Submission Web Form.

Submit a Claim (https://www.toronto.ca/city-government/accountability-operations-customer-service/complaints-claims-compliments/make-a-claim-against-the-city/claim-against-the-city-online-form/)

According to the *City of Toronto Act* and *Occupier's Liability Act*, you are required to submit to the City notice of a claim for property damage or injury. You may do so through the Claim Submission Web Form. You are encouraged to submit notice of your claim as soon as possible.

If your claim relates to the condition of the City's roads or sidewalks you are required to submit notice of the claim within 10 days of the date of the incident.

If your claim relates to an injury caused by snow or ice on City property that is not a City road or sidewalk, you are required to submit notice of your claim within 60 days of the date of the incident.

You are required to include the following:

- Your name, address, and email address
- Date and location of the accident which caused the property damage or injury

In the Additional Information field, you are encouraged to provide additional details such as:

- A brief description of how the accident happened
- A description of your property damage or injury
- If you reported this accident to the City, please provide the name(s) of City sta involved
- If a City Contractor was involved, please provide the contractor's name

Please note that you will not be able to submit any photos or receipts. Once an adjuster has been assigned you will be able to submit any documentation you have with respect to your claim. Retain all documentation that you believe supports your claim such as photos, receipts and estimates.

You will receive a confirmation email with your claim number and claim details at your provided email address. Please retain this number as it will be used for all correspondence with the City of Toronto and insurance adjusters.

Your submission will be forwarded to the City's insurance adjuster, ClaimsPro, for evaluation.

Please note that under the *Limitations Act, 2002*, any legal action against the City must be issued with the Court within two years of the date of injury or loss. Your notice to the City does not fulfill this requirement under the *Limitations Act, 2002.*

Expand All Collapse All

Submit a Claim by Mail or Courier

The City will accept your notice of claim by delivery to City Hall. Prepare your notice of claim in writing and ensure it contains the information noted in the section above.

Submit a Claim by Mail/Courier:

Claims
City Hall
100 Queen St. W.,
5th Floor, East Tower
Toronto, Ontario, M5H 2N2

Adjuster Acknowledgement

The City's third-party adjuster, ClaimsPro, will send an acknowledgement letter within two business days upon receipt of your information from the City.

If you submitted by mail: Generally, you should receive an acknowledgement letter within 10 business days, however, delays may occur due to mail and courier service.

If you do not receive an acknowledgement letter please contact ClaimsPro at 905-564-0654.

Claim Status & Additional Information

The ClaimsPro adjuster assigned to your claim is your contact person for claim status update and additional information.

If you have filed a claim against the City, but have not received an acknowledgement letter from ClaimsPro:

- Click on 'Update an Existing Claim' link and select the respective option in the 'What would you like to do?' field of the Claim Submission Web Form.
- You will be required to provide your name, date of loss, and claim number.

Claims Involving The City's Contractor(s)

The City of Toronto frequently enters into contracts with independent companies (contractors) who perform work on the City's behalf. The City's agreements with the contractors contain a strict requirement that they respond directly to claims for any damage or injury they caused to the public.

Upon receipt of information from the City division that a contractor had control over the accident location at the time of your loss, the City's adjuster will forward your claim to the contractor for their investigation and liability determination. You will be advised in writing when your claim has been forwarded to the contractor. The contractor should acknowledge receipt of your claim and identify a contact person who will be investigating your claim. If you do not receive the contractor's acknowledgement letter within 10 business days, please contact the City's adjuster to assist you with determining the contractor's contact person.

The contractor will conduct an investigation and make a liability decision regarding your claim. If the contractor determines they were responsible for your loss, they will resolve your claim with you directly.

If the contractor determines their work met reasonable and appropriate construction standards, they may deny your claim. In this case, their communication to you will provide the results of their investigation and clearly explain their decision. Should you disagree with the contractor's decision, please contact the City's adjuster to advise them of the contractor's position.

The City adjuster can assist you with the following:

- clarify the claims process
- clarify the facts that led the City to its position on liability
- advise whether this position has changed given any of the contractor's findings

If the contractor maintains that they are not liable, the City determines that it has not been negligent, and you still wish to pursue your claim, the adjuster will provide you with the basis upon which the City has denied liability.

If you still wish to pursue your claim, you have the option of pursuing the contractor and/or the City by proceeding legal action.

Damages Requiring A Rental Vehicle

Before a claim is filed and investigated, ClaimsPro cannot authorize payment for a rental vehicle. If you need to rent a vehicle, it is your own decision.

Please note that the claims adjuster must complete an investigation to determine if the City is responsible for your property damage before it can approve any costs related to a rental vehicle. You may consider contacting your own automobile insurance company for assistance in the meantime.

If you choose to rent a vehicle before hearing from your insurance company, you may be responsible for all or part of that expense.

Collision Involving a City Vehicle

You must report the accident to your own insurer. Regardless of fault, in accordance with the **Direct Compensation Rules (https://www.fsrao.ca/consumers/auto-insurance/protect-yourself/claims-process-after-accident)** of the Insurance Act, all

physical damage must be reported to and paid by your own automobile insurer.

Claiming Through My Insurance Company vs. the City of Toronto

Making a claim through your insurance company means that you are taking advantage of your insurance coverage for your personal assets according to your insurance policy. Here's what you should know about going through your insurance:

- Your insurance coverage is generally more extensive than what you may recover from the City through a third party liability claim.
- Often your insurance company will pay for your loss up front, regardless of who is responsible for your damage. This may, however, result in higher premiums in the future.

Making a claim against the City of Toronto is a third-party liability claim, which means you believe that the City has been negligent in its maintenance of facilities, roads, trees and sewers, causing bodily injury and/or damage to your property, and you are seeking compensation.

Here's what you should know about making a claim against the City of Toronto:

- Third party liability claims will take more time as an investigation will be conducted by the City's adjusters to determine if the City was negligent, causing damage.
- Payment from the City is not guaranteed.
- If the City is found to be negligent, the amount that you would receive in compensation is limited to its current value, not its replacement value

Contact Information

Call 311 Toronto
Within Toronto city limits
Telephone: 311

Outside city limits
Telephone: 416-392-2489

TTY: Use 711 (https://www.toronto.ca/city-government/accessibility-human-rights/accessibility-at-the-city-of-toronto/711-relay-service/)

Email: 311@toronto.ca (mailto:311@toronto.ca)

Always call 911 for emergencies.

311toronto (https://twitter.com/311toronto)

Related Information

Insurance & Risk Management – Complaints & Compliments (https://www.toronto.ca/city-government/accountability-operations-customer-service/complaints-claims-compliments/make-a-claim-against-the-city/insurance-risk-management-complaints-compliments/)

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